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**MEMORANDUM**

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**TO:** Mayor Patrick Collins, and City Council  
**FROM:** TJ Barttelbort, Purchasing Manager   
**DATE:** May 21, 2024  
**SUBJECT:** Professional Services Agreement between the City of Cheyenne and The Design Studio, Inc. (TDSi), for the Johnson Pool Evaluation and Design Project

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Two (2) Responsive Proposals were submitted under Request for Proposal (RFP) #8-24, for the Johnson Pool Evaluation and Design Project.

The proposals were received from:

1. TDSI, Inc.
2. Stockwell Engineers

The Proposal submitted by Landmark Aquatics has been rejected due to non-conformance with the scope requirements.

Upon review of the proposals by the evaluation panel, the group has recommended acceptance of the proposal submitted by The Design Studio, Inc. (TDSi), for a project award amount of \$247,533.00.

At this time, the Scope of Work requests Sixty-Five Percent (65%) Design Development (DD), but does not include completion of One-Hundred Percent (100%) Construction Documents (CD). This may be considered at a future time.

Basis for award was based on a Qualifications and Cost based review and scoring of proposals.

Funding: 032-17-1721-45-43113 (SPOT 2021 Ballot / Johnson Pool Project)

City Contract No. \_\_\_\_\_

**PROFESSIONAL SERVICES AGREEMENT**  
for  
**JOHNSON POOL EVALUATION AND DESIGN**

This Professional Services Agreement (“Agreement”) is made and entered into by and between the **City of Cheyenne**, located at **2101 O’Neil Avenue, Cheyenne, Wyoming 82001** (“City”), and **The Design Studio, Inc. (TDSi)**, located at **1610 Pioneer Avenue, Cheyenne, Wyoming 82001** (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

**RECITALS**

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the **Johnson Pool Evaluation and Design Project, for Sixty-Five Percent (65%) Design Development (DD)**, in accordance with **City of Cheyenne Request for Proposal (RFP) #8-24**, incorporated herein by reference, and the **Consultant’s submitted proposal**, incorporated herein by reference.

1.1. **CONSTRUCTION DOCUMENTS PHASE SERVICES**

1.1.1 Construction Documents Phase Services for this project are not included in this agreement.

1.1.2. The Owner may request, in writing, that the Architect provide Construction Documents Phase Services after the date of this agreement. If the Architect agrees in writing to provide such services, the Architect shall be compensated as noted in Article 3 below.

1.1.3. If the Owner elects to not retain the Architect for Construction Documents Phase Services:

1.1.3.1.°The Owner shall be solely responsible for interpreting the Schematic Design and Design Development Phase Documents to discover, correct and mitigate any errors, inconsistencies, or omissions, and for authorizing deviations from the documents during the development of the Contract Documents.

1.1.3.2 The Owner shall indemnify and hold the Architect, its agents and employees harmless from and against all claims, losses, damages and expenses, including third party claims, losses, damages and expenses, and

including but not limited to the defense costs and the time of the Architect, regardless of whether or not such claim, loss, damage or expense is caused in part by a party indemnified under this agreement related to the Owner's or a Third Parties' interpretation of the Schematic Design and Design Development Phase Documents, or the Owner's or Third Parties' failure to discover, correct or mitigate any errors, inconsistencies or omissions from the Schematic Design and Design Development Phase Documents, and for authorizing or making any deviations to the design from the Schematic Design and Design Development Phase Documents.

1.2. BIDDING, CONSTRUCTION AND POST CONSTRUCTION PHASE SERVICES

1.2.1 Bidding, Construction and Post Construction Phase Services for this project are not included in this agreement.

1.2.2. The Owner may request, in writing, that the Architect provide Bidding, Construction and Post Construction Phase Services after the date of this agreement. If the Architect agrees in writing to provide such services, the Architect shall be compensated for such services as noted for Additional Services.

1.2.3. If the Owner elects to not retain the Architect for Bidding, Construction and Post Construction Phase Services:

1.2.3.1.\*The Owner shall be solely responsible for interpreting the Contract Documents and observing the Work of the Contractor to discover, correct and mitigate any errors, inconsistencies, or omissions, and for authorizing deviations from the construction documents.

1.2.3.2 The Owner shall indemnify and hold the Architect, its agents and employees harmless from and against all claims, losses, damages and expenses, including third party claims, losses, damages and expenses, and including but not limited to the defense costs and the time of the Architect, regardless of whether or not such claim, loss, damage or expense is caused in part by a party indemnified under this agreement related to the Owner's interpretation of the Contract Documents, observation of or failure to adequately observe the Work of the Contractor, and discovery, and directions to correct or mitigate any errors, inconsistencies or omissions, or the Owner's failure to discover, correct or mitigate any errors, inconsistencies or omissions from the construction document, and for authorizing any deviations from the construction documents.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by **October 3, 2024.** The Consultant shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant **Two Hundred Forty-Seven Thousand, Five Hundred Thirty-Three Dollars (\$247,533.00),** as stated in **Exhibit A – Price Proposal.**

In the event that the City modifies the Agreement to include the remaining Scope of Work items to bring the Project to One Hundred (100%) Percent Construction Documents (CD) as documented in Exhibit A, the requested amount to be added to this Agreement may be revised or increased. The amount of revision or increase shall not exceed the percentage of current inflation as identified in the Consumer Price Index (CPI). This increase shall be calculated from the Effective Date of this Agreement to the date the revised Agreement Modification is prepared.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees, or sub-consultants are found in violation of this policy, the Agreement may be terminated.



7. INDEMNIFICATION/HOLD HARMLESS

To the fullest extent permitted by law, Consultant shall indemnify the City of Cheyenne, its officers, directors, partners, employees, and representatives, from and against losses, damages, and judgments arising from claims by third parties, including reasonable attorneys' fees and expenses recoverable under applicable law, but only to the extent they are found to be caused by a negligent act, error, or omission of Consultant or Consultant's officers, directors, members, partners, agents, employees, or subconsultants in the performance of services under this Agreement.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

**Commercial General Liability Insurance**

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

**Workers' Compensation**

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

**Professional Liability Insurance**

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs

a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

### **Additional Insurance Information**

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26  
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT  
With every monthly billing, the Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

11. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.

13. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to **March 31, 2026**. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of

default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of nine (9) pages, Exhibit A – Price Proposal, consisting of fourteen (14) pages, Request for Proposal RFP 8-24, issued via OpenGov E-Procurement Portal, Addendum One, issued April 11, 2024 3:57 PM via OpenGov E-Procurement Portal, and the Consultant's submitted proposal, consisting of thirty-four (34) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

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IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: \_\_\_\_\_  
Patrick Collins, Mayor

Attest:

\_\_\_\_\_  
Kristina F. Jones, City Clerk

Date: \_\_\_\_\_

Consultant, **The Design Studio, Inc. (TDSi)**

By: \_\_\_\_\_

Print Name: \_\_\_\_\_

Date: \_\_\_\_\_



FEE PROPOSAL FOR  
**CITY OF CHEYENNE**  
RFP #8-24  
**JOHNSON POOL EVALUATION AND DESIGN**  
**CHEYENNE, WYOMING**

APRIL 25, 2024



City Lake Park,  
High Point, North Carolina  
Photo: Water Technology, Inc.



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Fee Proposal for Professional Design Services for  
**CITY OF CHEYENNE:**  
**JOHNSON POOL**  
**EVALUATION AND DESIGN**  
**(RFP #8-24)**  
Cheyenne, Wyoming

April 25, 2024

City of Cheyenne  
Community Recreation and Events Department  
2101 O'Neil Avenue  
Cheyenne, Wyoming 82001

**ATTN: Jason Sanchez, TJ Barttelbort and Members of the selection committee**

**RE: Proposal for Professional Design Services for  
JOHNSON POOL EVALUATION AND DESIGN, RPF 8-24**

**Jason, TJ, and Members of the Selection Committee:**

Thank you again for allowing our firm to provide this proposal for Professional Services for the proposed Johnson Pool Evaluation and Design. We would be honored to have the chance to once again work with you.

The attached proposal represents our current understanding of the proposed project. If, as you review our proposal, you have any questions, please do not hesitate to contact me. We would be glad to meet to further discuss our approach to the project.

Thank you again,

Randy Byers, AIA, LEED APBD+C  
randy@tdsi.us

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## SCOPE OF SERVICES

The general description of the Scope of Services for this project is as follows:

### **BASE SCOPE ARCHITECTURAL AND ENGINEERING SERVICES FOR JOHNSON POOL:**

- Site: 308 East 8<sup>th</sup> Street, Cheyenne, Wyoming
  - City owned property
- Project area:
  - $\pm 32,320$  SF (Entire Park)
  - $\pm 100' \times 175'$ ,  $\pm 17,500$  SF, Johnson Pool overall project area
    - Pool is anticipated to be  $\pm 4,000$ - $5,000$  SF, zero depth entry, with aquatic features TBD.
- Architectural:
  - Determination of building sizes, layout, configuration on site, code compliance, egress compliance, etc.
- Height of Buildings: 1 story (Restrooms, Concessions, Pool Equipment, Office)
- Number of buildings: Design of Site is anticipated to accommodate 2 buildings of the similar size. It is anticipated that one building will accommodate the locker rooms and restrooms, and another separate building would accommodate concessions/office and pool equipment. Final layout to be determined during design.
- Surveying:
  - Topographic Survey of project site. Does not include private utility locates. One Call will be utilized to identify existing buried utilities.
- Civil Design:
  - Site improvement plans, grading plans (as required), pavement plans (as required for new ADA parking and sidewalks) and detail sheets. ~~Plans will be submitted to City of Cheyenne for EPR review (By Summit Engineering).~~ Does not include sewer improvements beyond the project site area.
- Planning and Zoning Approvals:
 

EXCLUDED FROM SCOPE

  - Site Plan Review:
    - One submittal and two revised submittals.
    - Will include:
      - Preliminary grading design of the immediate Pool project area, and anticipated site improvements (i.e. – sidewalk).
  - Engineering Plan Review:
    - One submittal and two revised submittals.
    - Will include:
      - Site layout plans, grading plans, pavement plans and detail sheets as necessary, drainage worksheet, traffic worksheet
        - Drainage study and/or traffic study are not included or anticipated.
- Structural System:
  - Conventional structures with traditional stem wall to frost depth, Slab on grade floor.
    - No basements, mezzanines or retaining walls
  - Slab on grade pool deck design.
- Mechanical/HVAC:
  - HVAC design for up to two total buildings. Estimated area of each building is not anticipated to exceed 2,000 square feet each.
    - It is assumed that the concessions building will not have any Type I or II hoods, and will not include any grease cooking.
  - Design of pool boiler system. Remainder of pool systems by pool/aquatic designer.
  - Exhaust ventilation design for the restrooms/locker rooms.

- Plumbing:
  - Plumbing design for the water, waste, vent, and natural gas piping.
    - Plumbing Fixture counts to be determined by the Architect.
  - Grease interceptor design for concessions, if required.
- Electrical:
  - Drawings will include site photometric plan, electrical one line, load calculations and electrical requirements needed for the City of Cheyenne review and electrical construction.
  - Drawings will show all electrical panels and meter locations as well as fire alarm, and data devices. The plans will require the electrical contractor to wire with circuit paths at his discretion with direction as provided on the plans.
- Aquatic Design – Water Technology Inc:
  - Program Development:
    - Consult with the Owner to develop an aquatic program consisting of prioritized goals, objectives, activities and features
    - Conduct Aquatic Programming Presentation
    - Discuss and Confirm Aquatic Goals, Objectives, Activities and Uses
    - Develop Aquatic Program and Capacities
    - Discuss Number of Pools, Pool Zones and Depths
    - Identify Preliminary Water Activities and Features
  - Schematic Design (SD, 35%) WTI will consult with the Client to confirm project goals and requirements and develop the spatial relationships of the aquatic components of the project. For the Schematic Design (SD) phase, WTI will perform the following tasks:
    - Confirm Aquatic Program and Capacities, and Mechanical Program
    - Develop Water Rides, Activities and Features
    - Define Pool Zones, Depths and Turnover Rates
    - Develop Pool Wall Profile Options
    - Select Preliminary Mechanical Equipment
    - Identify pool filtration, heating and lighting methodologies
    - Develop Preliminary Mechanical Equipment Layout
    - Develop Preliminary Aquatic Drawings - 2D Planview Drawings
    - Develop Rough Order of Magnitude (ROM) Aquatic Construction Cost Opinion
  - Design Development (DD, 65%):
    - Based on the Client approved SD Deliverables, WTI will develop designs of the aquatic areas and systems. For the Design Development (DD) phase, WTI will perform the following tasks:
      - Finalize Pool Wall Profile(s)
        - Shapes and Depths
      - Define Pool Specialty and Mechanical Equipment
      - Develop Pool Mechanical Equipment Layout
      - Develop Aquatic Drawings
      - Pool Plans, Sections, and Details
      - Pool Structural Design
      - Preliminary Pool Piping Plans, and Piping Details
      - Pool Mechanical Plans, Schedules, and Details
      - Update Utility Requirements
      - Develop Draft Specifications
      - Conduct Inter-Disciplinary Review and Coordinate with other Consultants of the Client
      - Verify Aquatic Design for Code Compliance
      - Develop Preliminary Aquatic Construction Cost Opinion
  - Construction Documents (CD, 100%):
    - Based on the Client approved DD Deliverables, WTI will finalize the designs of the aquatic areas and systems. Final CD Deliverables will contain information suitable for contractors to provide construction pricing or bidding. Final CD Drawings provided by WTI will contain the Professional Seal of an Architect or

**EXCLUDED FROM SCOPE**

Engineer licensed in the State/Province of the project site and will be suitable for review by permitting agencies with jurisdiction over the project. For the Construction Document (CD) phase, WTI will perform the following tasks:

- Finalize Pool Equipment and Mechanical Equipment Schedules
- Finalize and Assemble Pool and Pool Mechanical Aquatic Drawings
  - Pool Plans, Sections, and Details
  - Pool Mechanical Plans, Schedules, and Details
  - Pool Piping Plans, Schedules and Details
  - Pool Structural Design
  - Pool Mechanical Schematics
- Finalize Specifications
- Finalize Utility Requirements
- Finalize Coordination with other Consultants
- Perform Internal Quality Assurance Procedure
- Address Questions and Comments from Permitting Agencies
- Assist with Swimming Pool permit applications for local jurisdiction. Owner is responsible for completion, review, and submittal of final application(s).
- Final Cost Estimate

**EXCLUDED FROM SCOPE**

- Construction Schedule:
  - TBD pending 6<sup>th</sup> Penny Vote

#### **ALTERNATE SCOPE; COVERED POOL STRUCTURE:**

- Enclosed Pool Building Area:
  - ± 80' x 100', ± 9,600SF, anticipated maximum building area due to site constraints, setbacks, egress paths, etc.
- Height of Buildings: 1 story, 10'-14' sidewall height, gable roof structure, glazing and insulated translucent panels, portion of walls and roof with operable roof and sidewall vents.
- Number of buildings: One
- Architectural:
  - Determination of building size, layout, integration with locker room and concessions buildings, code compliance, egress compliance, etc.
  - Coordination with consultants.
- Structural System:
  - Enclosed pool structure design by structure manufacture with aluminum framing (pre-engineered structure), overall structure layout by Design Team (Elevations, openings, code compliance).
  - Foundation system design by Structural Engineer based upon loads by Structure Manufacturer.
- Mechanical/HVAC:
  - HVAC design for a heating and dehumidification system for the enclosed pool structure (9,600 SF Maximum).
  - Fire Sprinkler performance specifications (Division 21). Design is via deferred submittal via the successful bidding fire suppression contractor.
- Electrical:
  - Power, Lighting, and fire alarm system design for enclosed structure.

#### **General:**

- A project and site-specific geotechnical investigation / soils report has been included in the Basic Services Scope.
- If the approved 35% Documents Phase (Schematic Design Phase) Scope as reflected in the Estimate of Probable Construction Cost exceeds the Estimated Project Budget noted by more than Twenty Percent (20%) the Architect's compensation shall be equitably adjusted.

- The fees noted above assume normal soil conditions, spread or continuous footings, slab-on-grade construction, no structural first floor or deep foundations (piles, piers, etc.).
- The Scope of Work and the proposed fees include the design for construction at one time (no phased construction). Reuse of the design and documents is not included in this Scope of Work or proposed fees.

 Project Delivery: Design-Bid-Build.

- The project shall be released as a single package, for award to one General Contractor, and bidding and construction shall immediately follow completion of construction documents and/or approval of 6<sup>th</sup> Penny funds.

-  The anticipated Scope of Services includes the following (refer to Scope of Services description above for Special Services):

#### SCOPE OF SERVICES PER RFP

| DESIGN PHASE SERVICES<br>(35%, 65% and 100% Documents)                                                                                                            |         |     |          | Architect | Civil Engineer | Structural Engineer | Mechanical Engineer | Electrical Engineer | Aquatic Designer |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|-----|----------|-----------|----------------|---------------------|---------------------|---------------------|------------------|
| Develop a design solution based upon the approved project requirements                                                                                            |         |     |          | Yes       | Yes            | Yes                 | Yes                 | Yes                 | Yes              |
| Meetings with Owner to review the design solution options and the Preliminary Project Budget                                                                      |         |     |          |           |                |                     |                     |                     |                  |
| Phase:                                                                                                                                                            | 35% SD  | Yes | Cheyenne | Yes       | Yes            | No                  | Yes                 | Yes                 | Yes (Virtual)    |
| Phase:                                                                                                                                                            | 65% DD  | Yes | Cheyenne | Yes       | Yes            | Yes                 | Yes                 | Yes                 | Yes              |
| Phase:                                                                                                                                                            | 100% CD | Yes | Cheyenne | Yes       | No             | No                  | No                  | No                  | Yes (Virtual)    |
| Synthesize the aspects of the design solution options preferred by the Owner to develop a final solution                                                          |         |     |          | Yes       | Yes            | Yes                 | Yes                 | Yes                 | Yes              |
| Upon the Owner's approval of the design solution, prepare Construction Documents indicating requirements for construction of the project, anticipated to include: |         |     |          |           |                |                     |                     |                     |                  |
| Drawings:                                                                                                                                                         |         |     |          |           |                |                     |                     |                     |                  |
|                                                                                                                                                                   | Yes     |     |          | Yes       | Yes            | Yes                 | Yes                 | Yes                 | Yes              |
| Written Bidding Requirements                                                                                                                                      |         |     |          | NA        | NA             | NA                  | NA                  | NA                  | NA               |
| Technical specifications for materials, systems, etc.                                                                                                             |         |     |          | Yes       | Review         | Review              | Yes                 | Yes                 | Yes              |
| Total Meetings with Owner                                                                                                                                         |         |     |          | 8         | 4              | 1                   | 3                   | 2                   | 5 (3 Virtual)    |
| Site Visits                                                                                                                                                       |         |     |          | 4         | 2              | 1                   | 1                   | 1                   | 1                |

EXCLUDED FROM SCOPE

- Estimated Construction Cost (*Estimated 2026 Bid date*):
  - Original Scope per RFP: \$4.5 - \$5.0 Million
  - Alternate (Enclosed Pool Structure): \$3.9 - \$4.4 Million

**PROFESSIONAL SERVICES FEES**

- ✚ For this project we propose to provide the Architectural services described herein, based on the RFP including consultant services listed above, for the Stipulated Sum fee of:

**FEES FOR ORIGINAL SCOPE OF SERVICES PER RFP  
(JOHNSON POOL DESIGN AND EVALUATION)**

|                                                                  |                      |           |
|------------------------------------------------------------------|----------------------|-----------|
| • 35% Documents Phase (Schematic Design (SD) Phase).....         | \$79,602             |           |
| • 65% Documents Phase (Design Development (DD) Phase) .....      | \$93,192             |           |
| • 100% Documents Phase (Construction Documents (CD) Phase) ..... | <del>\$99,017</del>  |           |
| • TOTAL .....                                                    | <del>\$271,811</del> | \$172,794 |

EXCLUDED  
FROM  
SCOPE

**ADDITIONAL FEES FOR ALTERNATE SCOPE OF SERVICES (COVERED POOL STRUCTURE)**

|                                                                  |                      |          |
|------------------------------------------------------------------|----------------------|----------|
| • 35% Documents Phase (Schematic Design (SD) Phase).....         | \$34,255             |          |
| • 65% Documents Phase (Design Development (DD) Phase) .....      | \$40,484             |          |
| • 100% Documents Phase (Construction Documents (CD) Phase) ..... | <del>\$45,155</del>  |          |
| • TOTAL .....                                                    | <del>\$119,894</del> | \$74,739 |

**TOTAL FEES FOR ORIGINAL AND ALTERNATE SCOPE OF SERVICES**

|               |                      |           |
|---------------|----------------------|-----------|
| • TOTAL ..... | <del>\$391,705</del> | \$247,533 |
|---------------|----------------------|-----------|

*Note: Bidding, Construction Administration, and Post Construction phase services are not included with this proposal. If desired, proposal can be provided upon request for these services.*

*The involvement of the Architect and the Architect's Consultants during the Bidding Phase and Construction Administration Phase and Post Construction Phase of the project is an integral part of their professional services and is essential to a cohesive, and successful project. If the Owner elects to not retain the Architect and Architect's Consultants for the Bidding, Construction Administration or Post Construction phases, a written release and indemnification shall be executed by the parties.*

**TDSi RATE SCHEDULE**

- ✚ TDSi Hourly Rates are as follows:

| Staff Member                                                                                                                                                                                                          | Rate Per Hour |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|
| ○ Randy Byers, AIA, LEED AP <sup>BD+C</sup> – TDSi Principal, Architect .....                                                                                                                                         | \$ 200        |
| ○ Clint Taylor, AIA, PE, LEED AP <sup>BD+C</sup> - TDSi Associate, Architect.....                                                                                                                                     | \$ 150        |
| ○ Amber Conwell, AIA - TDSi Associate, Architect .....                                                                                                                                                                | \$ 140        |
| ○ Will Byers, AIA Associate - TDSi Associate, Project Manager/Intern Architect.....                                                                                                                                   | \$ 140        |
| ○ Legal testimony will be invoiced at 2 times the above noted hourly rate;<br>Research and consultation as an Expert Witness, and time giving<br>depositions will be billed at 1.5 times the above noted hourly rate. |               |

**CONSULTANT SERVICES**

- ✚ Consultant fees and reimbursable expenses will be billed at cost plus 10% markup.



## REIMBURSABLE EXPENSES

- ✚ Expenses incurred in connection with the project will be billed at actual cost plus a 10% markup.
- ✚ Examples of such expenses are:
  - out of town travel and subsistence expenses;
  - reproduction costs for documents for other than the Architect's use or record;
  - postage and shipping charges.

*Hourly Rates and Reimbursable Expenses Rates are subject to review and change on a periodic basis, or as circumstances require.*

## BILLING SCHEDULE

- ✚ E-Invoice Format - All invoices will be emailed to the Client, with an option for the Client to pay online.

## ADDITIONAL SERVICES

- ✚ Additional Services will be invoiced at the Hourly Rates current at the time the services are provided.

## PRODUCTS OF SERVICE

- ✚ In general, the anticipated Products of Service include the following:

### **FOR SCOPE OF SERVICES PER RFQ (INCLUDES ALTERNATE DESIGN SCOPE IF APPROVED)**

- At Completion of 35% Documents Phase (Schematic Design Phase):
  - Drawings (PDF)
  - Technical Specifications (PDF, outline form)
  - Aquatic Program Narrative (PDF)
- At Completion of 65% Documents Phase (Design Development Phase):
  - Drawings (PDF)
  - Technical Specifications (PDF)
  - Conceptual Renderings (3D, PDF)
  - Preliminary Order of Magnitude Cost Estimate (PDF)
- At Completion of 100% Documents Phase (Construction Documents Phase):
  - Drawings (PDF)
  - Technical Specifications (PDF)
  - Conceptual Renderings (3D, PDF)
  - Final Construction Cost Estimate (PDF)

**EXCLUDED FROM SCOPE**

**SERVICES NOT INCLUDED**

✚ The Architect's services/fees do not include the following:

- Preparation of Planning & Zoning applications, maps, etc. including annexation, Site Plan Review, etc.
- Surveying, except as noted
- Environmental Investigations (Phase I or Phase II)
- Acoustical Design
  - Interior Acoustic Design
  - Sound Isolation Design
  - Mechanical Noise & Vibration Control
- Testing or Abatement Design for Hazardous Materials (Asbestos, lead, etc.)
- Consultant other than those specifically listed above
- Special Consultants
- Furniture Fixtures & Equipment Design, Documents, or Procurements Services
- Preparation of documents for Approvals required by Governmental Agencies, except as noted above.
- Manual Distribution of Bid Documents
- Plan Review Fees
- Building Permit Fees
- Printing, except as specifically noted herein
- Bidding/Negotiation Phase Services
- Construction Administration Phase Services
- Construction Testing Fees
- Specialty Inspections
- Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies
- Physical Models
- Post Construction Services, except as noted herein
- Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted herein
- Utility water, sewer, or natural gas piping further than 5 feet outside the building, except as required for specific design scope of this project.
- Landscape irrigation, other than performance specification for modifications for existing irrigation system.
- Ground source heat pump system design including loop field design.
- Fire sprinkler design
- Energy modeling
- Life cycle cost analysis of multiple mechanical systems
- LEED Documentation
- Detailed Quantity Take-off Construction cost estimates
- Commissioning of the mechanical systems
- Ground Vibration Testing and Recommendations
- Testing and analysis of ground borne environmental vibrations
- Exterior Sound Isolation Design
- Detailed Analysis of Environmental Noise (Cadna Model)
- Security Design
- Travel outside Cheyenne, Wyoming
- Professional Liability Coverage beyond limits noted below
- Any other services not explicitly included within proposal

100% DOCUMENTS PHASE SERVICES  
(CONSTRUCTION DOCUMENTS)

The services noted above may be requested by the Owner as Additional Services.

## INSURANCE

### Professional Liability Insurance:

- TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a "claims-made" policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.

### General Business Liability Insurance:

- TDSi carries a General Business Liability policy provided by Nationwide/Allied Insurance Company. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

## TERM OF PROPOSAL

-  This proposal will be valid a maximum of 120 days from original issuance

Submitted By:



Randy Byers, AIA, LEED APBD+C  
TDSi President  
for the firm

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Cherry Park Pool  
Weatherford, Texas  
Photo by Water Technology, Inc.

